Pensive (Pensieve, Inc.)

Privacy terms and statements | Source archive

Retrieved 10 October 2026

Policy and supporting documents captured

Public documents captured from the competitor website and its linked legal pages. Vendor statements are preserved as published, without independent certification.

About these copies

Web pages are preserved as searchable text snapshots, with their headings and paragraph order retained. Navigation and non-content page elements may be omitted. These are copies of vendor statements, not a GRADIAS assessment of compliance. Source links and any original downloadable files are listed below. Content is retained in its original language.

Sources

01. Privacy Policies

02. Terms of Service

Competitor website

01 | Privacy Policies

https://www.pensive.com/schools/privacy-policy

Webpage text snapshot | Retrieved 10 October 2026

Important Notice: Enterprise & Educational Institution Clients

This Privacy Policy applies only to individual consumer users. Enterprise clients and educational institutions operate under separate agreements with enhanced privacy protections:

Educational institutions receive custom data privacy agreements

All enterprise data handling complies with institutional security requirements

If you represent an educational institution or enterprise organization, please contact our partnerships team at partnerships@pensive.com for applicable terms and data privacy agreements.

PRIVACY POLICY **Last updated April 22, 2026** \ This privacy notice ("**Privacy Policy**") for Pensieve Inc. ("**we**," "**us**," or "**our**"), describes how and why we might collect, store, use, and/or share ("**process**") your personal information when you use our services ("**Services**"), such as when you: - Visit our website at \underline{https://pensive.com}, or any website/product of ours that links to this privacy notice - Engage with us in other related ways, including any sales, marketing, or events **Questions or concerns?** Reading this privacy notice will help you understand your privacy rights and choices. If you do not agree with our policies and practices, please do not use our Services. If you still have any questions or concerns, please contact us at hello@pensive.com. ## **1. WHAT INFORMATION DO WE COLLECT?** **Personal information you disclose to us** ***In Short:** We collect personal information that you provide to us.* We collect personal information that you voluntarily provide to us when you register for the Services, express an interest in obtaining information about us or our products and Services, when you participate in activities on the Services, or otherwise when you contact us. **Personal Information Provided by You.** The personal information that we collect depends on the context of your interactions with us and the Services, the choices you make, and the products and features you use. The personal information we collect may include the following: - names - email addresses **Sensitive Information.** We do not process sensitive information. **Payment Data.** We may collect data necessary to process your payment if you choose to make purchases, such as your payment instrument number, and the security code associated with your payment instrument. All payment data is handled and stored by Stripe. You may find their privacy notice link(s) here: \underline{https://stripe.com/privacy}. All personal information that you provide to us must be true, complete, and accurate, and you must notify us of any changes to such personal information. **Information automatically collected** ***In Short:** Some information — such as your Internet Protocol (IP) address and/or browser and device characteristics — is collected automatically when you visit our Services.* We automatically collect certain information when you visit, use, or navigate the Services. This information does not reveal your specific identity (like your name or contact information) but may include device and usage information, such as your IP address, browser and device characteristics, operating system, language preferences, referring URLs, device name, country, location, information about how and when you use our Services, and other technical information. This information is primarily needed to maintain the security and operation of our Services, and for our internal analytics and reporting purposes. The information we collect includes: - **_Log and Usage Data._** Log and usage data is service-related, diagnostic, usage, and performance information our servers automatically collect when you access or use our Services and which we record in log files. Depending on how you interact with us, this log data may include your IP address, device information, browser type, and settings and information about your activity in the Services (such as the date/time stamps associated with your usage, pages and files viewed, searches, and other actions you take such as which features you use), device event information (such as system activity, error reports (sometimes called "crash dumps"), and hardware settings). - **_Device Data._** We collect device data such as information about your computer, phone, tablet, or other device you use to access the Services. Depending on the device used, this device data may include information such as your IP address (or proxy server), device and application identification numbers, location, browser type, hardware model, Internet service provider and/or mobile carrier, operating system, and system configuration information. - **_Location Data._** We collect location data such as information about your device's location, which can be either precise or imprecise. How much information we collect depends on the type and settings of the device you use to access the Services. For example, we may use GPS and other technologies to collect geolocation data that tells us your current location (based on your IP address). You can opt out of allowing us to collect this information either by refusing access to the information or by disabling your Location setting on your device. However, if

you choose to opt out, you may not be able to use certain aspects of the Services. ## **2. HOW DO WE PROCESS YOUR INFORMATION?** ***In Short:** We process your information to provide, improve, and administer our Services, communicate with you, for security and fraud prevention, and to comply with law. We may also process your information for other purposes with your consent.* **We process your personal information for a variety of reasons, depending on how you interact with our Services, including:** - **To facilitate account creation and authentication and otherwise manage user accounts.** We may process your information so you can create and log in to your account, as well as keep your account in working order. - **To deliver and facilitate delivery of services to the user.** We may process your information to provide you with the requested service. - **To respond to user inquiries/offer support to users.** We may process your information to respond to your inquiries and solve any potential issues you might have with the requested service. - **To send administrative information to you.** We may process your information to send you details about our products and services, changes to our terms and policies, and other similar information. - **To fulfill and manage your orders.** We may process your information to fulfill and manage your orders, payments, returns, and exchanges made through the Services. - **To request feedback.** We may process your information when necessary to request feedback and to contact you about your use of our Services. - **To send you marketing and promotional communications.** We may process the personal information you send to us for our marketing purposes, if this is in accordance with your marketing preferences. You can opt out of our marketing emails at any time. For more information, see "\underline{WHAT ARE YOUR PRIVACY RIGHTS?}" below. - **To post testimonials.** We post testimonials on our Services that may contain personal information. - **To protect our Services.** We may process your information as part of our efforts to keep our Services safe and secure, including fraud monitoring and prevention. - **To administer prize draws and competitions.** We may process your information to administer prize draws and competitions. - **To evaluate and improve our Services, products, marketing, and your experience.** We may process your information when we believe it is necessary to identify usage trends, determine the effectiveness of our promotional campaigns, and to evaluate and improve our Services, products, marketing, and your experience. - **To identify usage trends.** We may process information about how you use our Services to better understand how they are being used so we can improve them. - **To determine the effectiveness of our marketing and promotional campaigns.** We may process your information to better understand how to provide marketing and promotional campaigns that are most relevant to you. - **To comply with our legal obligations.** We may process your information to comply with our legal obligations, respond to legal requests, and exercise, establish, or defend our legal rights. - **To publish research.** We may publish research using anonymized usage data. - **To train AI Models.** We may use anonymized data

(not identifiable or recoverable as your personal information) to train third party artificial intelligence (AI) models. ## **3. WHEN AND WITH WHOM DO WE SHARE YOUR PERSONAL INFORMATION?** ***In Short:** We may share information in specific situations described in this section and/or with the following categories of third parties.* **Vendors, Consultants, and Other Third-Party Service Providers.** We may share your data with third-party vendors, service providers, contractors, or agents ("**third parties**") who perform services for us or on our behalf and require access to such information to do that work. The categories of third parties we may share personal information with are as follows: - Cloud Computing Services - Communication & Collaboration Tools - Data Analytics Services - Data Storage Service Providers - Payment Processors - Sales & Marketing Tools - Research Organizations We also may need to share your personal information in the following situations: - **Business Transfers.** We may share or transfer your information in connection with, or during negotiations of, any merger, sale of company assets, financing, or acquisition of all or a portion of our business to another company. ## **4. HOW LONG DO WE KEEP YOUR INFORMATION?** ***In Short:** We keep your information for as long as necessary to fulfill the purposes outlined in this privacy notice unless otherwise required by law.* We will only keep your personal information for as long as it is necessary for the purposes set out in this privacy notice, unless a longer retention period is required or permitted by law (such as tax, accounting, or other legal requirements). No purpose in this notice will require us to keep your personal information for longer than the period of time in which users have an account with us. When we have no ongoing legitimate business need to process your personal information, we will either delete or anonymize such information, or, if this is not possible (for example, because your personal information has been stored in backup archives), then we will securely store your personal information and isolate it from any further processing until deletion is possible. ## **5. HOW DO WE STORE AND KEEP YOUR INFORMATION SAFE?** ***In Short:** We aim to protect your personal information through a system of organizational and technical security measures.* We store your personal information on servers that are operated by third parties (such as Google Cloud) and are located in the United States. We have implemented appropriate and reasonable technical and organizational security measures designed to protect the security of any personal information we process. However, despite our safeguards and efforts to secure your information, no electronic transmission over the Internet or information storage technology can be guaranteed to be 100% secure, so we cannot promise or guarantee

that hackers, cybercriminals, or other unauthorized third parties will not be able to defeat our security and improperly collect, access, steal, or modify your information. Although we will do our best to protect your personal information, transmission of personal information to and from our Services is at your own risk. You should only access the Services within a secure environment. ## **6. DO WE COLLECT INFORMATION FROM MINORS?** ***In Short:** We do not knowingly collect data from or market to children under 18 years of age.* We do not knowingly collect, solicit data from, or market to children under 18 years of age, nor do we knowingly sell such personal information. By using the Services, you represent that you are at least 18 or that you are the parent or guardian of such a minor and consent to such minor dependent's use of the Services. If we learn that personal information from users less than 18 years of age has been collected, we will deactivate the account and take reasonable measures to promptly delete such data from our records. If you become aware of any data we may have collected from children under age 18, please contact us at hello@pensive.com. ## **7. WHAT ARE YOUR PRIVACY RIGHTS?** ***In Short:** You may review, change, or terminate your account at any time, depending on your country, province, or state of residence.* **\underline{Withdrawing your consent:}** If we are relying on your consent to process your personal information, which may be express and/or implied consent depending on the applicable law, you have the right to withdraw your consent at any time. You can withdraw your consent at any time by contacting us by using the contact details provided in the section "\underline{HOW CAN YOU CONTACT US ABOUT THIS NOTICE?}" below. However, please note that this will not affect the lawfulness of the processing before its withdrawal nor, when applicable law allows, will it affect the processing of your personal information conducted in reliance on lawful processing grounds other than consent. **\underline{Opting out of marketing and promotional communications:}** You can unsubscribe from our marketing and promotional communications at any time by clicking on the unsubscribe link in the emails that we send, or by contacting us using the details provided in the section "\underline{HOW CAN YOU CONTACT US ABOUT THIS NOTICE?}" below. You will then be removed from the marketing lists. However, we may still communicate with you — for example, to send you service-related messages that are necessary for the administration and use of your account, to respond to service requests, or for other non-marketing purposes. **Account Information** If you would at any time like to review or change the information in your account or terminate your account, you can: - Contact us using the contact information provided. - Log in to your account settings and update your user account. Upon your request to terminate your account, we will deactivate or delete your account and information from our active databases. However, we may retain some information in our files to prevent fraud, troubleshoot problems, assist with any investigations, enforce our legal terms and/or comply with applicable legal requirements. If you have questions or comments about your privacy rights, you may email us at hello@pensive.com. ## **8. CONTROLS FOR DO-NOT-TRACK FEATURES** Most web browsers and some mobile operating systems and mobile applications include a Do-Not-Track ("DNT") feature or setting you can activate to signal your privacy preference not to have data about your online browsing activities monitored and collected. At this stage, no uniform technology standard for recognizing and implementing DNT signals has been finalized. As such, we do not currently respond to DNT browser signals or any other mechanism that automatically communicates your choice not to be tracked online. If a standard for online tracking is adopted that we must follow in the future, we will inform you about that practice in a revised version of this privacy notice. California law requires us to let you know how we respond to web browser DNT signals. Because there currently is not an industry or legal standard for recognizing or honoring DNT signals, we do not respond to them at this time. ## **9. DO UNITED STATES RESIDENTS HAVE SPECIFIC PRIVACY RIGHTS?** ***In Short:** If you are a resident of California, Colorado, Connecticut, Delaware, Florida, Indiana, Iowa, Kentucky, Montana, New Hampshire, New Jersey, Oregon, Tennessee, Texas, Utah, Virginia, or any other state that has adopted similar requirements, you may have the right to request access to and receive details about the personal information we maintain about you and how we have processed it, correct inaccuracies, get a copy of, or delete your personal information. You may also have the right to withdraw your consent to our processing of your personal information. These rights may be limited in some circumstances by applicable law. More information is provided below.*

Categories of Personal Information We Collect We have collected the following categories of personal information in the past twelve (12) months: \begin{table}[h!] \centering \begin{tabular}{|l|l|c|} \hline \textbf{Category} & \textbf{Examples} & \textbf{Collected} \\ \hline A. Identifiers & Contact details, such as real name, alias, postal address, telephone or mobile contact number, unique personal identifier, online identifier, Internet Protocol address, email address, and account name & YES \\ \hline B. Personal information as defined in the California Customer Records statute & Name, contact information, education, employment, employment history, and financial information & YES \\ \hline C. Protected classification characteristics under state or federal law & Gender, age, date of birth, race and ethnicity, national origin, marital status, and other demographic data & NO \\ \hline D. Commercial information & Transaction information, purchase history, financial details, and payment information & YES \\ \hline E. Biometric information & Fingerprints and voiceprints & NO \\ \hline F. Internet or other similar network activity & Browsing history, search history, online behavior,

interest data, and interactions with our other websites, applications, systems, and advertisements & NO \\ \hline G. Geolocation data & Device location & YES \\ \hline H. Audio, electronic, sensory, or similar information & Images and audio, video or call recordings created in connection with our business activities & NO \\ \hline I. Professional or employment-related information & Business contact details in order to provide you our Services at a business level or job title, work history, and professional qualifications if you apply for a job with us & NO \\ \hline J. Education Information & Student records and directory information & NO \\ \hline K. Inferences drawn from collected personal information & Inferences drawn from any of the collected personal information listed above to create a profile or summary about, for example, an individual’s preferences and characteristics & NO \\ \hline L. Sensitive personal Information & & NO \\ \hline \end{tabular} \label{table:1} \end{table} We may also collect other personal information outside of these categories through instances where you interact with us in person, online, or by phone or mail in the context of: - Receiving help through our customer support channels; - Participation in customer surveys or contests; and - Facilitation in the delivery of our Services and to respond to your inquiries. We will use and retain the collected personal information as needed to provide the Services or for: - Category A - As long as the user has an account with us - Category B - As long as the user has an account with us - Category D - As long as the user has an account with us - Category G - As long as the user has an account with us **Sources of Personal Information** Learn more about the sources of personal information we collect in "\underline{WHAT INFORMATION DO WE COLLECT?}" **How We Use and Share Personal Information** Learn about how we use your personal information in the section, "\underline{HOW DO WE PROCESS YOUR INFORMATION?}" We collect and share your personal information through: - Beacons/Pixels/Tags **Will your information be shared with anyone else?** We may disclose your personal information with our service providers pursuant to a written contract between us and each service provider. Learn more about how we disclose personal information to in the section, "\underline{WHEN AND WITH WHOM DO WE SHARE YOUR PERSONAL INFORMATION?}" We may use your personal information for our own business purposes, such as for undertaking internal research for technological development and demonstration. This is not considered to be "selling" of your personal information. We have not sold or shared any personal information to third parties for a business or commercial purpose in the preceding twelve (12) months. We have disclosed the following categories of personal information to third parties for a business or commercial purpose in the preceding twelve (12) months: - Category A. Identifiers - Category B. Personal information as defined in the California Customer Records law - Category D. Commercial information - Category G. Geolocation data The categories of third parties to whom we disclosed personal information for a business or commercial purpose can be found under "\underline{WHEN AND WITH WHOM DO WE SHARE YOUR PERSONAL INFORMATION?}" **Your Rights** If you are a California resident, California law provides you with specific rights regarding your personal information. However, these rights are not absolute, and in certain cases, we may decline your request as permitted by law. These rights include: - **Right to know** the categories of personal information we collect about you, how we use it, whether and how we share it and the purposes for which we collect it - **Right to access** your personal data - **Right to correct** inaccuracies in your personal data - **Right to request** the deletion of your personal data - **Right to obtain a copy** of the personal data you previously shared with us - **Right to non-discrimination** for exercising your rights - **Right to opt out** of the processing of your personal data if it is used for targeted advertising (or sharing as defined under California’s privacy law), the sale of personal data, or profiling in furtherance of decisions that produce legal or similarly significant effects ("profiling") Depending upon the state where you live, you may also have the following rights: - Right to obtain a list of the categories of third parties to which we have disclosed personal data (as permitted by applicable law, including California's and Delaware's privacy law) - Right to obtain a list of specific third parties to which we have disclosed personal data (as permitted by applicable law, including Oregon’s privacy law) - Right to limit use and disclosure of sensitive personal data (as permitted by applicable law, including California’s privacy law) - Right to opt out of the collection of sensitive data and personal data collected through the operation of a voice or facial recognition feature (as permitted by applicable law, including Florida’s privacy law) **How to Exercise Your Rights** To exercise these rights, you can contact us by submitting a data subject access request by emailing us at hello@pensive.com or by referring to the contact details at the bottom of this document. Under certain US state data protection laws, you can designate an authorized agent to make a request on your behalf. We may deny a request from an authorized agent that does not submit proof that they have been validly authorized to act on your behalf in accordance with applicable laws. **Request Verification** Upon receiving your request, we will need to verify your identity to determine you are the same person about whom we have the information in our system. We will only use personal information provided in your request to verify your identity or authority to make the request. However, if we cannot verify your identity from the information already maintained by us, we may request that you provide additional information for the purposes of verifying your identity and for security or fraud-prevention purposes. If you submit the request through an authorized agent, we may need to collect additional information to verify your identity before processing your request and the agent will need to provide a written and signed permission from you to submit such

request on your behalf. We will aim to respond to verifiable consumer requests within 45 days of receipt, and if we require more time, will inform you of the reason and extension period in writing. **Appeals** Under certain US state data protection laws, if we decline to take action regarding your request, you may appeal our decision by emailing us at hello@pensive.com. We

will inform you in writing of any action taken or not taken in response to the appeal, including a written explanation of the reasons for the decisions. If your appeal is denied, you may submit a complaint to your state attorney general. **California "Shine The Light" Law** California Civil Code Section 1798.83, also known as the "Shine The Light" law, permits our users who are California residents to request and obtain from us, once a year and free of charge, information about categories of personal information (if any) we disclosed to third parties for direct marketing purposes and the names and addresses of all third parties with which we shared personal information in the immediately preceding calendar year. If you are a California resident and would like to make such a request, please submit your request in writing to us by using the contact details provided in the section "\underline{HOW CAN YOU CONTACT US ABOUT THIS NOTICE?}" ## **10. DO WE MAKE UPDATES TO THIS NOTICE?** ***In Short:** Yes, we will update this notice as necessary to stay compliant with relevant laws.* We may update this privacy notice from time to time. The updated version will be indicated by an updated "Revised" date at the top of this privacy notice. If we make material changes to this privacy notice, we may notify you either by prominently posting a notice of such changes or by directly sending you a notification. We encourage you to review this privacy notice frequently to be informed of how we are protecting your information. ## **11. HOW CAN YOU CONTACT US ABOUT THIS NOTICE?** If you have questions or comments about this notice, you may contact our Data Protection Officer (DPO) by email at yoon@pensive.com, by phone at 1-415-320-6074, or contact us by post at: Pensieve Inc.\ Data Protection Officer\ 282 2nd St\ Suite 450\ San Francisco, CA 94105\ United States ## **12. HOW CAN YOU REVIEW, UPDATE, OR DELETE THE DATA WE COLLECT FROM YOU?** Based on the applicable laws of your country or state of residence in the US, you may have the right to request access to the personal information we collect from you, details about how we have processed it, correct inaccuracies, or delete your personal information. You may also have the right to withdraw your consent to our processing of your personal information. These rights may be limited in some circumstances by applicable law. To request to review, update, or delete your personal information, please email \underline{hello@pensive.com}.

02 | Terms of Service

https://www.pensive.com/schools/terms-of-service

Webpage text snapshot | Retrieved 10 October 2026

Important Notice: Enterprise & Educational Institution Clients

These Terms of Service apply only to individual consumer users. Enterprise clients and educational institutions operate under separate agreements with enhanced privacy protections:

Educational institutions receive custom data privacy agreements

All enterprise data handling complies with institutional security requirements

If you represent an educational institution or enterprise organization, please contact our partnerships team at partnerships@pensive.com for applicable terms and agreements.

TERMS OF SERVICE **Last updated April 22, 2026** ## **AGREEMENT TO OUR LEGAL TERMS** We are Pensieve Inc. ("**Company**," "**we**," "**us**," "**our**"), a company registered in California, United States at 282 2nd St, Suite 450, San Francisco, CA 94105. We operate the website \underline{https://pensive.com} (the "**Site**"), as well as any other related products and services that refer or link to these legal terms (the "**Legal Terms**") (collectively, the "**Services**"). We provide AI grading and tutoring service for STEM courses at colleges and universities. You can contact us by email at hello@pensive.com, or by mail to 282 2nd St, Suite 450, San Francisco, CA 94105, United States. These Legal Terms constitute a legally binding agreement made between you, whether personally or on behalf of an entity ("**you**", "**your**", or "**user**"), and Pensieve Inc., concerning your access to and use of the Services. You agree that by accessing the Services, you have read, understood, and agreed to be bound by all these Legal Terms. IF YOU DO NOT AGREE WITH ALL THESE LEGAL TERMS, THEN YOU ARE EXPRESSLY PROHIBITED FROM USING THE SERVICES AND YOU MUST DISCONTINUE USE IMMEDIATELY. We reserve the right to make any changes to these Terms to address changes to our Services. We will notify you of any changes through any means proscribed through applicable laws, including placing a notice on our Website or sending you an email. The modified Legal Terms will become effective upon posting. By continuing to use the Services after the effective date of any changes, you agree to be bound by the modified terms. The Services are intended for users who are at least 18 years old. Persons under the age of 18 are not permitted to use or register for the Services. ## **1. OUR SERVICES** The information provided when using the Services is not intended for distribution to or use by any person or entity in any jurisdiction or country where such distribution or use would be contrary to law or regulation or which would subject us to any registration requirement within such jurisdiction or country. Accordingly, those persons who choose to access the Services from other locations do so on their own initiative and are solely responsible for compliance with federal, state, and local laws, if and to the extent such laws are applicable. ## **2. INTELLECTUAL PROPERTY RIGHTS** **Our intellectual property** We are the owner or the licensee of all intellectual property rights in our Services, including all source code, databases, functionality, software, website designs, audio, video, text, photographs, and graphics in the Services (collectively, the "Content"), as well as the trademarks, service marks, and logos contained therein (the "Marks"). Our Content and Marks are protected by copyright and trademark laws (and various other intellectual property rights and unfair competition laws) and treaties in the United States and around the world. The Content and Marks are provided in or through the Services "AS IS" for your personal, non-commercial use only. **Your use of our Services** Subject to your compliance with these Legal Terms, including the "\underline{PROHIBITED ACTIVITIES}" section below, we grant you a non-exclusive, non-transferable, revocable license, solely for your personal, non-commercial use, to: - access the Services; and - download or print a copy of any portion of the Content to which you have properly gained access. Except as set out in this section or elsewhere in our Legal Terms, no part of the Services and no Content or Marks may be copied, reproduced, aggregated, republished, uploaded, posted, publicly displayed, encoded, translated, transmitted, distributed, sold, licensed, or otherwise exploited for any commercial purpose whatsoever, without our express prior written permission. If you wish to make any use of the Services, Content, or Marks other than as set out in this section or elsewhere in our Legal Terms, please address your request to: hello@pensive.com. If we grant you written permission to post, reproduce, or publicly display any part of our Services or Content, you must identify Pensive as the owners or licensors of the Services, Content, or Marks and ensure that any copyright or proprietary notice appears or is visible on posting, reproducing, or displaying our Content. We reserve all rights not expressly granted to you in and to the Services, Content, and Marks. Any breach of these Intellectual Property Rights will constitute a material breach of our Legal Terms and your right to use our Services will terminate immediately. **Copyright infringement** We respect the

intellectual property rights of others. If you believe that any material available on or through the Services infringes upon any copyright you own or control, please immediately refer to the "\underline{DIGITAL MILLENNIUM COPYRIGHT ACT (DMCA) NOTICE AND POLICY}" section below. ## **3. USER REPRESENTATIONS** By using the Services, you represent and warrant that: (1) you have the legal capacity and you agree to comply with these Legal Terms; (2) you are not a minor in the jurisdiction in which you reside; (3) you will not access the Services through automated or non-human means, whether through a bot, script or otherwise; (4) you will not use the Services for any illegal or unauthorized purpose; and (5) your use of the Services will not violate any applicable law or regulation. We reserve the right to suspend or terminate your account and refuse any and all current or future use of the Services (or any portion thereof). ## **4. USER REGISTRATION** You may be required to register to use or access certain features of the Services (any such user, a “Registered User”). As a Registered User, you (a) represent and warrant that: (1) all registration information you submit will be true, accurate, current, and complete; and (2) you will maintain the accuracy of such information and promptly update such registration information as necessary; and (b) agree to keep your password confidential and will be responsible for all use of your account and password. We reserve the right to remove, reclaim, or change a username you select if we determine, in our sole discretion, that such username is inappropriate, obscene, or otherwise objectionable. ## **5. PURCHASES AND PAYMENT** We accept the following forms of payment: - Visa - Mastercard - American Express - Discover You agree to provide current, complete, and accurate purchase and account information for all purchases made via the Services. You further agree to promptly update account and payment information, including email address, payment method, and payment card expiration date, so that we can complete your transactions and contact you as needed. Sales tax will be added to the price of purchases as deemed required by us. We may change prices at any time. All payments shall be in US dollars. You agree to pay all charges at the prices then in effect for your purchases and any applicable shipping fees, and you authorize us to charge your chosen payment provider for any such amounts upon placing your order. We reserve the right to correct any errors or mistakes in pricing, even if we have already requested or received payment. We reserve the right to refuse any order placed through the Services. We may, in our sole discretion, limit or cancel quantities purchased per person, per household, or per order. These restrictions may include orders placed by or under the same customer account, the same payment method, and/or orders that use the same billing or shipping address. We reserve the right to limit or prohibit orders that, in our sole judgment, appear to be placed by dealers, resellers, or distributors. ## **6. SUBSCRIPTIONS** **Cancellation** You can cancel your subscription at any time by logging into your account. Your cancellation will take effect at the end of the current paid term. If you have any questions or are unsatisfied with our Services,

please email us at hello@pensive.com. **Fee Changes** We may, from time to time, make changes to the subscription fee and will communicate any price changes to you in accordance with applicable law. ## **7. PROHIBITED ACTIVITIES** You may not access or use the Services for any purpose other than that for which we make the Services available. The Services may not be used in connection with any commercial endeavors except those that are specifically endorsed or approved by us. As a user of the Services, you agree not to: - Systematically retrieve data or other content from the Services to create or compile, directly or indirectly, a collection, compilation, database, or directory without written permission from us. - Trick, defraud, or mislead us and other users, especially in any attempt to learn sensitive account information such as user passwords. - Circumvent, disable, or otherwise interfere with security-related features of the Services, including features that prevent or restrict the use or copying of any Content or enforce limitations on the use of the Services and/or the Content contained therein. - Disparage, tarnish, or otherwise harm, in our opinion, us and/or the Services. - Use any information obtained from the Services in order to harass, abuse, or harm another person. - Make improper use of our support services or submit false reports of abuse or misconduct. - Use the Services in a manner inconsistent with any applicable laws or regulations. - Engage in unauthorized framing of or linking to the Services. - Upload or transmit (or attempt to upload or to transmit) viruses, Trojan horses, or other material, including excessive use of capital letters and spamming (continuous posting of repetitive text), that interferes with any party’s uninterrupted use and enjoyment of the Services or modifies, impairs, disrupts, alters, or interferes with the use, features, functions, operation, or maintenance of the Services. - Engage in any automated use of the system, such as using scripts to send comments or messages, or using any data mining, robots, or similar data gathering and extraction tools. - Delete the copyright or other proprietary rights notice from any Content. - Attempt to impersonate another user or person or use the username of another user. - Upload or transmit (or attempt to upload or to transmit) any material that acts as a passive or active information collection or transmission mechanism, including without limitation, clear graphics interchange formats ("gifs"), 1×1 pixels, web bugs, cookies, or other similar devices (sometimes referred to as "spyware" or "passive collection mechanisms" or "pcms"). - Interfere with, disrupt, or create an undue burden on the Services or the networks or services connected to the Services. - Harass, annoy, intimidate, or threaten any of our employees or agents engaged in providing any portion of the Services to you. - Attempt to bypass any measures of the Services designed to

prevent or restrict access to the Services, or any portion of the Services. - Copy or adapt the Services' software, including but not limited to Flash, PHP, HTML, JavaScript, or other code. - Except as permitted by applicable law, decipher, decompile, disassemble, or reverse engineer any of the software comprising or in any way making up a part of the Services. - Except as may be the result of standard search engine or Internet browser usage, use, launch, develop, or distribute any automated system, including without limitation, any spider, robot, cheat utility, scraper, or offline reader that accesses the Services, or use or launch any unauthorized script or other software. - Use a buying agent or purchasing agent to make purchases on the Services. - Make any unauthorized use of the Services, including collecting usernames and/or email addresses of users by electronic or other means for the purpose of sending unsolicited email, or creating user accounts by automated means or under false pretenses. - Use the Services as part of any effort to compete with us or otherwise use the Services and/or the Content for any revenue-generating endeavor or commercial enterprise. ## **8. CONTRIBUTION LICENSE** We do not assert any ownership over your Contributions. You retain full ownership of all of your Contributions and any intellectual property rights or other proprietary rights associated with your Contributions. We are not liable for any statements or representations in your Contributions provided by you in any part of the Services. You are solely responsible for your Contributions to the Services and you expressly agree to exonerate us from any and all responsibility and to refrain from any legal action against us regarding your Contributions. We have the right, in our sole and absolute discretion, (1) to edit, redact, or otherwise change any Contributions; (2) to re-categorize any Contributions to place them in more appropriate locations on the Services; and (3) to pre-screen or delete any Contributions at any time and for any reason, without notice. We have no obligation to monitor your Contributions. ## **9. GUIDELINES FOR REVIEWS** We may provide you areas on the Services to leave reviews or ratings. When posting a review, you must comply with the following criteria: (1) you should have firsthand experience with the person/entity being reviewed; (2) your reviews should not contain offensive profanity, or abusive, racist, offensive, or hateful language; (3) your reviews should not contain discriminatory references based on religion, race, gender, national origin, age, marital status, sexual orientation, or disability; (4) your reviews should not contain references to illegal activity; (5) you should not be affiliated with competitors if posting negative reviews; (6) you should not make any conclusions as to the legality of conduct; (7) you may not post any false or misleading statements; and (8) you may not organize a campaign encouraging others to post reviews, whether positive or negative. We may accept, reject, or remove reviews in our sole discretion. We have absolutely no obligation to screen reviews or to delete reviews, even if anyone considers reviews objectionable or inaccurate. Reviews are not endorsed by us, and do not necessarily represent our opinions or the views of any of our affiliates or partners. We do not assume liability for any review or for any claims, liabilities, or losses resulting from any review. By posting a review, you hereby grant to us a perpetual, non-exclusive, worldwide, royalty-free, fully paid, assignable, and sublicensable right and license to reproduce, modify, translate, transmit by any means, display, perform, and/or distribute all content relating to review. ## **10. THIRD-PARTY WEBSITES AND CONTENT** The Services may contain (or you may be sent via the Site) links to other websites ("Third-Party Websites") as well as articles, photographs, text, graphics, pictures, designs, music, sound, video, information, applications, software, and other content or items belonging to or originating from third parties ("Third-Party Content"). Such Third-Party Websites and Third-Party Content are not investigated, monitored, or checked for accuracy, appropriateness, or completeness by us, and we are not responsible for any Third-Party Websites accessed through the Services or any Third-Party Content posted on, available through, or installed from the Services, including the content, accuracy, offensiveness, opinions, reliability, privacy practices, or other policies of or contained in the Third-Party Websites or the Third-Party Content. Inclusion of, linking to, or permitting the use or installation of any Third-Party Websites or any Third-Party Content does not imply approval or endorsement thereof by us. If you decide to leave the Services and access the Third-Party Websites or to use or install any Third-Party Content, you do so at your own risk, and you should be aware these Legal Terms no longer

govern. You should review the applicable terms and policies, including privacy and data gathering practices, of any website to which you navigate from the Services or relating to any applications you use or install from the Services. Any purchases you make through Third-Party Websites will be through other websites and from other companies, and we take no responsibility whatsoever in relation to such purchases which are exclusively between you and the applicable third party. You agree and acknowledge that we do not endorse the products or services offered on Third-Party Websites and you shall hold us blameless from any harm caused by your purchase of such products or services. Additionally, you shall hold us blameless from any losses sustained by you or harm caused to you relating to or resulting in any way from any Third-Party Content or any contact with Third-Party Websites. ## **11. SERVICES MANAGEMENT** We reserve the right, but not the obligation, to: (1) monitor the Services for violations of these Legal Terms; (2) take appropriate legal action against anyone who, in our sole discretion, violates the law or these Legal Terms, including without limitation, reporting such user to law enforcement authorities; (3) in our sole discretion and

without limitation, refuse, restrict access to, limit the availability of, or disable (to the extent technologically feasible) any of your Contributions or any portion thereof; (4) in our sole discretion and without limitation, notice, or liability, to remove from the Services or otherwise disable all files and content that are excessive in size or are in any way burdensome to our systems; and (5) otherwise manage the Services in a manner designed to protect our rights and property and to facilitate the proper functioning of the Services. ## **12. PRIVACY POLICY** We care about data privacy and security. Please review our Privacy Policy: \underline{https://tutor.pensive.com/privacy-policy}. By using the Services, you agree to be bound by our Privacy Policy, which is incorporated into these Legal Terms. Please be advised the Services are hosted in the United States. If you access the Services from any other region of the world with laws or other requirements governing personal data collection, use, or disclosure that differ from applicable laws in the United States, then through your continued use of the Services, you are transferring your data to the United States, and you expressly consent to have your data transferred to and processed in the United States. ## **13. DIGITAL MILLENNIUM COPYRIGHT ACT (DMCA) NOTICE AND REPEAT INFRINGER POLICY** **Repeat Infringer Policy** We respect the intellectual property rights of others and take repeat offenses from users seriously. If we receive repeat Notifications of alleged infringement concerning any user's account, the user account will be flagged and assessed for termination under this policy ("Repeat Infringer Policy"). As an initial step, we will alert the user of the potential infringement. We may also require the user to acknowledge these alerts, log into the account, or call our support team. We also reserve the right to suspend or terminate, as well as implement any interim measures to prevent repeated infringement by any repeat infringer account. **Notifications** If you believe that any material available on or through the Services infringes upon any copyright you own or control, please immediately notify our Designated Copyright Agent using the contact information provided below (a "Notification"). A copy of your Notification will be sent to the person who posted or stored the material addressed in the Notification. All Notifications should meet the requirements of DMCA 17 U.S.C. § 512(c)(3) and include the following information: (1) A physical or electronic signature of a person authorized to act on behalf of the owner of an exclusive right that is allegedly infringed; (2) identification of the copyrighted work claimed to have been infringed, or, if multiple copyrighted works on the Services are covered by the Notification, a representative list of such works on the Services; (3) identification of the material that is claimed to be infringing or to be the subject of infringing activity and that is to be removed or access to which is to be disabled, and information reasonably sufficient to permit us to locate the material; (4) information reasonably sufficient to permit us to contact the complaining party, such as an address, telephone number, and, if available, an email address at which the complaining party may be contacted; (5) a statement that the complaining party has a good faith belief that use of the material in the manner complained of is not authorized by the copyright owner, its agent, or the law; and (6) a statement that the information in the notification is accurate, and under penalty of perjury, that the complaining party is authorized to act on behalf of the owner of an exclusive right that is allegedly infringed upon. **Counter Notification** If you believe your own copyrighted material has been removed from the Services as a result of a mistake or misidentification, you may submit a written counter notification to us using the contact information provided below (a "Counter Notification"). To be an effective Counter Notification under the DMCA, your Counter Notification must include substantially the following: (1) identification of the material that has been removed or disabled and the location at which the material appeared before it was removed or disabled; (2) a statement that you consent to the jurisdiction of the Federal District Court in which your address is located, or if your address is outside the United States, for any judicial district in which we are located; (3) a statement that you will accept service of process from the party that filed the Notification or the party's agent; (4) your name, address, and telephone number; (5) a statement under penalty of perjury that you have a good faith belief that the material in question was removed or disabled as a result of a mistake or misidentification of the material to be removed or disabled; and (6) your physical or electronic signature. If you send us a valid, written Counter Notification meeting the requirements described above, we will restore your removed or disabled material, unless we first receive notice from the party filing the Notification informing us that such party has filed a court action to restrain you from engaging in infringing activity related to the material in question. Please note that if you materially misrepresent that the disabled or removed content was removed by mistake or misidentification, you may be liable for damages, including costs and attorney's fees. Designated Copyright Agent\ Copyright Agent\ Attn: Copyright Agent\ 282 2nd St\ Suite 450\ San Francisco, CA 94105\ United States\ copyright@pensive.com ## **15. TERM AND TERMINATION** These Legal Terms shall remain in full force and effect while you use the Services. WITHOUT LIMITING ANY OTHER PROVISION OF THESE LEGAL TERMS, WE RESERVE THE RIGHT TO, IN OUR SOLE DISCRETION AND WITHOUT NOTICE OR LIABILITY, DENY ACCESS TO AND USE OF THE SERVICES (INCLUDING BLOCKING CERTAIN IP ADDRESSES), TO ANY PERSON FOR ANY REASON OR FOR NO REASON, INCLUDING WITHOUT LIMITATION FOR BREACH OF ANY REPRESENTATION, WARRANTY, OR COVENANT CONTAINED IN THESE LEGAL TERMS OR OF ANY APPLICABLE LAW OR REGULATION. WE MAY TERMINATE YOUR USE OR PARTICIPATION IN THE SERVICES OR DELETE YOUR ACCOUNT AND ANY CONTENT OR INFORMATION THAT YOU POSTED AT ANY TIME,

WITHOUT WARNING, IN OUR SOLE DISCRETION. If we terminate or suspend your account for any reason, you are prohibited from registering and creating a new account under your name, a fake or borrowed name, or the name of any third party, even if you may be acting on behalf of the third party. In addition to terminating or suspending your account, we reserve the right to take appropriate

legal action, including without limitation pursuing civil, criminal, and injunctive redress. ## **16. MODIFICATIONS AND INTERRUPTIONS** We reserve the right to change, modify, or remove the contents of the Services at any time or for any reason at our sole discretion without prior notice. We will not be liable to you or any third party for any modification, price change, suspension, or discontinuance of the Services. We cannot guarantee the Services will be available at all times. We may experience hardware, software, or other problems or need to perform maintenance related to the Services, resulting in interruptions, delays, or errors. We reserve the right to change, revise, update, suspend, discontinue, or otherwise modify the Services at any time or for any reason without prior notice to you. You agree that we have no liability whatsoever for any loss, damage, or inconvenience caused by your inability to access or use the Services during any downtime or discontinuance of the Services. Nothing in these Legal Terms will be construed to obligate us to maintain and support the Services or to supply any corrections, updates, or releases in connection therewith. ## **17. GOVERNING LAW** These Legal Terms and your use of the Services are governed by and construed in accordance with the laws of the State of California applicable to agreements made and to be entirely performed within the State of California, without regard to its conflict of law principles. ## **18. DISPUTE RESOLUTION** **Informal Negotiations** To expedite resolution and control the cost of any dispute, controversy, or claim related to these Legal Terms (each a "Dispute" and collectively, the "Disputes") brought by either you or us (individually, a "Party" and collectively, the "Parties"), the Parties agree to first attempt to negotiate any Dispute (except those Disputes expressly provided below) informally for at least thirty (30) days before initiating arbitration. Such informal negotiations commence upon written notice from one Party to the other Party. **Binding Arbitration** If the Parties are unable to resolve a Dispute through informal negotiations, the Dispute (except those Disputes expressly excluded below) will be finally and exclusively resolved by binding arbitration. The arbitration shall be commenced and conducted under the Commercial Arbitration Rules of the American Arbitration Association ("AAA") and, where appropriate, the AAA's Supplementary Procedures for Consumer Related Disputes ("AAA Consumer Rules"), both of which are available at the American Arbitration Association (AAA) website. Your arbitration fees and your share of arbitrator compensation shall be governed by the AAA Consumer Rules and, where appropriate, limited by the AAA Consumer Rules. If such costs are determined by the arbitrator to be excessive, we will pay all arbitration fees and expenses. The arbitration may be conducted in person, through the submission of documents, by phone, or online. The arbitrator will make a decision in writing, but need not provide a statement of reasons unless requested by either Party. The arbitrator must follow applicable law, and any award may be challenged if the arbitrator fails to do so. Except where otherwise required by the applicable AAA rules or applicable law, the arbitration will take place in Alameda, California. Any final outcome of such arbitration shall be final and binding as to all matters of substance and procedure, and may be enforced by a petition to any court of competent jurisdiction, for confirmation and enforcement of the award. In addition, either party may seek equitable, non-monetary relief at any time in any court of competent jurisdiction without thereby waiving its right to arbitration of any dispute or controversy. In no event shall any Dispute brought by either Party related in any way to the Services be commenced more than one (1) years after the cause of action arose. If this provision is found to be illegal or unenforceable, then neither Party will elect to arbitrate any Dispute falling within that portion of this provision found to be illegal or unenforceable and such Dispute shall be decided by a court of competent jurisdiction within the courts listed for jurisdiction above, and the Parties agree to submit to the personal jurisdiction of that court. **Restrictions** The Parties agree that any arbitration shall be limited to the Dispute between the Parties individually. To the full extent permitted by law, (a) no arbitration shall be joined with any other proceeding; (b) there is no right or authority for any Dispute to be arbitrated on a class-action basis or to utilize class action procedures; and (c) there is no right or authority for any Dispute to be brought in a purported representative capacity on behalf of the general public or any other persons. **Exceptions to Informal Negotiations and Arbitration** The Parties agree that the following Disputes are not subject to the above provisions concerning informal negotiations binding arbitration: (a) any Disputes seeking to enforce or protect, or concerning the validity of, any of the intellectual property rights of a Party; (b) any Dispute related to, or arising from, allegations of theft, piracy, invasion of privacy, or unauthorized use; and (c) any claim for injunctive relief. If this provision is found to be illegal or unenforceable, then neither Party will elect to arbitrate any Dispute falling within that portion of this provision found to be illegal or unenforceable and such Dispute shall be decided by a court of competent jurisdiction within the courts listed for jurisdiction above, and the Parties agree to submit to the personal jurisdiction of that court. ## **19. CORRECTIONS** There may be information on the Services that contains typographical errors, inaccuracies, or omissions, including descriptions, pricing, availability, and various other information. We reserve the right to correct any

errors, inaccuracies, or omissions and to change or update the information on the Services at any time, without prior notice. ## **20. DISCLAIMER** THE SERVICES ARE PROVIDED ON AN AS-IS AND AS-AVAILABLE BASIS. YOU AGREE THAT YOUR USE OF THE SERVICES WILL BE AT YOUR SOLE RISK. TO THE FULLEST EXTENT PERMITTED BY LAW, WE DISCLAIM ALL WARRANTIES, EXPRESS OR IMPLIED, IN CONNECTION WITH THE SERVICES AND YOUR USE THEREOF, INCLUDING, WITHOUT LIMITATION, THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT. WE MAKE NO WARRANTIES OR REPRESENTATIONS ABOUT THE ACCURACY OR COMPLETENESS OF THE SERVICES' CONTENT OR THE CONTENT OF ANY WEBSITES OR MOBILE APPLICATIONS LINKED TO THE SERVICES AND WE WILL ASSUME NO LIABILITY OR RESPONSIBILITY FOR ANY (1) ERRORS, MISTAKES, OR INACCURACIES OF CONTENT AND MATERIALS, (2) PERSONAL INJURY OR PROPERTY DAMAGE, OF ANY NATURE WHATSOEVER, RESULTING FROM YOUR ACCESS TO AND USE OF THE SERVICES, (3) ANY UNAUTHORIZED ACCESS TO OR USE OF OUR SECURE SERVERS AND/OR ANY AND ALL PERSONAL INFORMATION AND/OR FINANCIAL INFORMATION STORED THEREIN, (4) ANY INTERRUPTION OR CESSATION OF TRANSMISSION TO OR FROM THE SERVICES, (5) ANY BUGS, VIRUSES, TROJAN HORSES, OR THE LIKE WHICH MAY BE TRANSMITTED TO OR THROUGH THE SERVICES BY ANY THIRD PARTY, AND/OR (6) ANY ERRORS OR OMISSIONS IN ANY CONTENT AND MATERIALS OR FOR ANY LOSS OR DAMAGE OF ANY KIND INCURRED AS A RESULT OF THE USE OF ANY CONTENT POSTED, TRANSMITTED, OR OTHERWISE MADE AVAILABLE VIA THE SERVICES. WE DO NOT WARRANT, ENDORSE, GUARANTEE, OR ASSUME RESPONSIBILITY FOR ANY PRODUCT OR SERVICE ADVERTISED OR OFFERED BY A THIRD PARTY THROUGH THE SERVICES, ANY HYPERLINKED WEBSITE, OR ANY WEBSITE OR MOBILE APPLICATION FEATURED IN ANY BANNER OR OTHER ADVERTISING, AND WE WILL NOT BE A PARTY TO OR IN ANY WAY BE RESPONSIBLE FOR MONITORING ANY TRANSACTION BETWEEN YOU AND ANY THIRD-PARTY PROVIDERS OF PRODUCTS OR SERVICES. AS WITH THE PURCHASE OF A PRODUCT OR SERVICE THROUGH ANY MEDIUM OR IN ANY

ENVIRONMENT, YOU SHOULD USE YOUR BEST JUDGMENT AND EXERCISE CAUTION WHERE APPROPRIATE. ## **21. USER DATA** We will maintain certain data that you transmit to the Services for the purpose of managing the performance of the Services, as well as data relating to your use of the Services, in accordance with the terms of our Privacy Policy. Although we perform regular routine backups of data, you are solely responsible for all data that you transmit or that relates to any activity you have undertaken using the Services. You agree that we shall have no liability to you for any loss or corruption of any such data, and you hereby waive any right of action against us arising from any such loss or corruption of such data. ## **22. ELECTRONIC COMMUNICATIONS, TRANSACTIONS, AND SIGNATURES** Visiting the Services, sending us emails, and completing online forms constitute electronic communications. You consent to receive electronic communications, and you agree that all agreements, notices, disclosures, and other communications we provide to you electronically, via email and on the Services, satisfy any legal requirement that such communication be in writing. YOU HEREBY AGREE TO THE USE OF ELECTRONIC SIGNATURES, CONTRACTS, ORDERS, AND OTHER RECORDS, AND TO ELECTRONIC DELIVERY OF NOTICES, POLICIES, AND RECORDS OF TRANSACTIONS INITIATED OR COMPLETED BY US OR VIA THE SERVICES. You hereby waive any rights or requirements under any statutes, regulations, rules, ordinances, or other laws in any jurisdiction which require an original signature or delivery or retention of non-electronic records, or to payments or the granting of credits by any means other than electronic means. ## **23. SMS TEXT MESSAGING** **Opting Out** If at any time you wish to stop receiving SMS messages from us, simply reply to the text with "STOP." You may receive an SMS message confirming your opt out. **Message and Data Rates** Please be aware that message and data rates may apply to any SMS messages sent or received. The rates are determined by your carrier and the specifics of your mobile plan. **Support** If you have any questions or need assistance regarding our SMS communications, please email us at hello@pensive.com or call at 1-415-320-6074. ## **24. CALIFORNIA USERS AND RESIDENTS** If any complaint with us is not satisfactorily resolved, you can contact the Complaint Assistance Unit of the Division of Consumer Services of the California Department of Consumer Affairs in writing at 1625 North Market Blvd., Suite N 112, Sacramento, California 95834 or by telephone at (800) 952-5210 or (916) 445-1254. ## **25. MISCELLANEOUS** These Legal Terms and any policies or operating rules posted by us on the Services or in respect to the Services constitute the entire agreement and understanding between you and us. Our failure to exercise or enforce any right or provision of these Legal Terms shall not operate as a waiver of such right or provision. These Legal Terms operate to the fullest extent permissible by law. We may assign any or all of our rights and obligations to others at any time. We shall not be responsible or liable for any loss, damage, delay, or failure to act caused by any cause beyond our reasonable control. If any provision or part of a provision of these Legal Terms is determined to be unlawful, void, or unenforceable, that provision or part of the provision is deemed severable from these Legal Terms and does not affect the validity and

enforceability of any remaining provisions. There is no joint venture, partnership, employment or agency relationship created between you and us as a result of these Legal Terms or use of the Services. You agree that these Legal Terms will not be construed against us by virtue of having drafted them. You hereby waive any and all defenses you may have based on the electronic form of these Legal Terms and the lack of signing by the parties hereto to execute these Legal Terms. ## **26. CONTACT US** In order to resolve a complaint regarding the Services or to receive further information regarding use of the Services, please contact us at: **Pensieve Inc.\ 282 2nd St, Suite 450\ San Francisco, CA 94105\ United States\ Phone: 1-415-320-6074\ hello@pensive.com** ## **Additional Terms for iOS Application** 1. **Acknowledgement** - Both you and Pensive acknowledge that this End-User License Agreement (EULA) is concluded between you and us only, and not with Apple. We, not Apple, are solely responsible for the Licensed Application and the content thereof. 2. **Scope of License** - The license granted to you is limited to a non-transferable license to use the Licensed Application on any Apple-branded products that you own or control, as permitted by the Usage Rules set forth in the Apple Media Services Terms and Conditions. 3. **Maintenance and Support** - We are solely responsible for providing maintenance and support for the Licensed Application. Both you and we acknowledge that Apple has no obligation to furnish any maintenance and support services with respect to the Licensed Application. 4. **Warranty** - In the event of any failure of the Licensed Application to conform to any applicable warranty, you may notify Apple, and Apple will refund the purchase price (if any) for the Licensed Application. To the maximum extent permitted by applicable law, Apple will have no other warranty obligation with respect to the Licensed Application. Any other claims, losses, liabilities, damages, costs, or expenses attributable to any failure to conform to any warranty will be our sole responsibility. 5. **Product Claims** - You and we acknowledge that we, not Apple, are responsible for addressing any claims of yours or any third party relating to the Licensed Application or your possession and/or use of the Licensed Application, including but not limited to: - (i) product liability claims; - (ii) any claim that the Licensed Application fails to conform to any applicable legal or regulatory requirement; - (iii) claims arising under consumer protection, privacy, or similar legislation. 6. **Intellectual Property Rights** - You and we acknowledge that, in the event of any third-party claim that the Licensed Application or your possession and use of the Licensed Application infringes a third party's intellectual property rights, we, not Apple, will be solely responsible for the investigation, defense, settlement, and discharge of any such intellectual property infringement claim. 7. **Legal Compliance** - You represent and warrant that: - (i) You are not located in a country that is subject to a U.S. Government embargo or designated by the U.S. Government as a "terrorist supporting" country; - (ii) You are not listed on any U.S. Government list of prohibited or restricted parties. 8. **Third-Party Terms of Agreement** - You must comply with applicable third-party terms of agreement when using the Licensed Application. 9. **Third-Party Beneficiary** - Both you and we acknowledge and agree that Apple and Apple's subsidiaries are third-party beneficiaries of this EULA. Upon your acceptance of the terms and conditions of this EULA, Apple will have the right (and will be deemed to have accepted the right) to enforce this EULA against you as a third-party beneficiary.